

TENTATIVE RULINGS for LAW and MOTION

January 29, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Five	(530) 406-6733
Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Davis Hospitality Fund, LP v. Royal Ganesh, LLC et al.**
 Case No. CV2025-0257

Hearing Date: **January 29, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, plaintiff Davis Hospitality Fund, LP's amended motion to compel production of documents and amended motion to compel discovery responses are **CONTINUED** to **March 10, 2026**, at 9:00 a.m. in Department Eleven.

The parties are **DIRECTED** to file a joint statement regarding meet and confer efforts and an update on: (1) defendants Ashok Patel and Royal Ganesh, LLC's responses to the pending discovery requests; and (2) the remaining issues in plaintiff's motions. The joint statement must be filed by **February 27, 2026**.

TENTATIVE RULING

Case: **Ghavamzadeh v. Lock**
Case No. CV2025-2216

Hearing Date: **January 29, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, defendants Norcal Gold, Inc. and Tracy Harris' demurrer to plaintiff Vesta Ghavamzadeh, as Trustee of The Olivia & Elliot Trust's complaint is **CONTINUED** to **March 26, 2026**, at 9:00 a.m. in Department Fourteen. The Court finds that the meet and confer process was insufficient. (Code Civ. Proc., § 430.41, subd. (a)(4); Corsaut decl., ¶¶ 2-3; Panagotacos decl., ¶¶ 6-15, Exhibits A & B.)

By **February 17, 2026**, the parties are **DIRECTED** to meet and confer, in person, by telephone, or by video conference, regarding the issues raised in defendants' demurrer. (Code Civ. Proc., § 430.41; *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 7 ["trial courts are not required to ignore defects in the meet and confer process" and retain the "discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort"].)

By **March 6, 2026**, defendants **SHALL** file and serve a declaration regarding the parties' meet and confer efforts and identify the remaining issues for the Court's determination.

By **March 13, 2026**, plaintiff **SHALL** file and serve a responsive declaration.

If there are no remaining issues, defendants are **DIRECTED** to request that the March 26, 2026, hearing be vacated.

TENTATIVE RULING

Case: **Lama v. Orion Aesthetics Corp. et al.**
Case No. CV2023-1945

Hearing Date: **January 29, 2026** **Department Eleven** **9:00 a.m.**

Defendant Hartej Uppal, M.D., FACP's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453; *People v. Williams* (1959) 174 Cal.App.2d 364, 390.) However, the Court does not take judicial notice of the truth of the contents in Exhibit B. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) Accordingly, plaintiff Iswor Lama, individually and as personal representative of the Estate of Dolmaya Thogra, decedent's objection to defendant's request for judicial notice is **OVERRULED**.

Defendant's objections to declaration of Shaun Carstairs, MD, FACMT, FACEP are **OVERRULED**. (Evid. Code, §§ 720, 801; *Jennings v. Palomar Pomerado Health Systems, Inc.* (2003) 114 Cal.App.4th 1108, 1116–1117; *Bushling v. Fremont Medical Center* (2004) 117 Cal.App.4th 493, 510; see also Carstairs decl., ¶¶ 9-10.)

Defendant's motion for summary adjudication as to issue nos. 1 and 3 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendant met his initial burden by showing that plaintiff cannot establish an element of his wrongful death and negligence cause of actions: breach of the applicable standard of care. (*Ibid.*; *Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1077; *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968; *Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984–985 [“When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence”]; UMF 22-24.) However, upon the burden shifting to plaintiff, plaintiff has shown that a triable issue of material fact exists as to this element. (Code Civ. Proc., § 437c, subd. (p)(2); UMF 22-24.) Specifically, plaintiff's experts opine that defendant's medical care and treatment, rendered to decedent on January 6, 2023, fell below the standard of care. (Plaintiff's Compendium of Evidence [“COE”], Exhibit B [“Gharavi decl.”], ¶¶ 10-11; Plaintiff's COE, Exhibit C [“Carstairs decl.”], ¶¶ 10-11.)

Defendant's motion for summary adjudication as to issue nos. 2 and 4 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendant met his initial burden by showing that plaintiff cannot establish an element of his wrongful death and negligence cause of actions: causation. (*Ibid.*; *Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1077; *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968; *Jones v. Ortho Pharmaceutical Corp.* (1985) 163 Cal.App.3d 396, 402 [“The law is well settled that in a personal injury action causation must be proven within a reasonable medical probability based upon competent expert testimony”]; UMF 25-28.) However, upon the burden shifting to plaintiff, plaintiff has shown that a triable issue of material fact exists as to this element. (Code Civ. Proc., § 437c, subd. (p)(2); UMF 25-28.) Specifically, plaintiff's expert opines that, to reasonable degree of medical probability, defendant's medical care and treatment was a substantial factor in causing decedent's death. (Carstairs decl., ¶¶ 10-11.)

Defendant's motion for summary adjudication as to issue no. 5 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Based on the legal authority provided, defendant has failed to establish that a loss of consortium claim cannot survive the death of a spouse. (See *Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 804 [noting "that to adopt plaintiff's proposed rule—limiting common law loss of consortium claims to the lifetime of the injured spouse—would often lead, in the case of a life-curtailling injury, to multiple proceedings and the possibility of a double recovery or an inadequate recovery"]; *Budavari v. Barry* (1986) 176 Cal.App.3d 849, 854, fn. 7; *Lamont v. Wolfe* (1983) 142 Cal.App.3d 375, 381; UMF 20; Defendant's Appendix of Evidence, Exhibits B & F.) Therefore, the Court finds that defendant has not satisfied his burden on summary judgment. (Code Civ. Proc., § 437c, subd. (p)(2).)

Accordingly, defendant's motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subd. (c).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Minasian et al. v. Harlan et al.**
 Case No. CV2025-0844

Hearing Date: **January 29, 2026** **Department Fourteen** **9:00 a.m.**

Defendants Arlyta Brown and Jim D. Brown, Trustees of the Jim D. Brown and Arlyta Brown Revocable Trust Dated May 15, 1992, and Gari Lyn Smithy as to the Remainder Interest, also known as Gari Lin Neufeld’s unopposed motion for judgment of dismissal with prejudice is **GRANTED**. (Code Civ. Proc., § 581, subd. (f)(1); Hamilton decl., ¶¶ 3-4, Exhibit A.)

If no hearing is requested, this tentative ruling is effective immediately. The Court will execute the proposed judgment of dismissal, lodged on December 16, 2025.

TENTATIVE RULING

Case: **Palomino Place, LLC v. Davis Joint Unified School District, et al.**
Case No. CV-2025-2301

Hearing Date: **January 29, 2026** **Department Five** **9:00 a.m.**

On the Court's own motion, respondents Davis Joint Unified School District and Davis Joint Unified School District Board of Education's motion to strike portions of petitioner's first amended verified petition for writ of mandate and complaint for declaratory relief as a strategic lawsuit against public participation, and respondents' demurrer to first amended verified petition for writ of mandate and complaint for declaratory relief are **CONTINUED** to **February 11, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: **Peterson v. City of Red Bluff et al.**
Case No. CV-2025-1674

Hearing Date: **January 29, 2026** **Department Fourteen** **9:00 a.m.**

City of Red Bluff's demurrer:

Defendant City of Red Bluff's ("City of Red Bluff") demurrer to plaintiff Jeffrey Peterson's ("plaintiff") complaint is **OVERRULED AS MOOT**. (Code Civ. Proc., § 430.10, subsd. (a), (e).) On December 17, 2025, this Court granted City of Red Bluff's special motion to strike plaintiff's entire complaint as to City of Red Bluff pursuant to Code of Civil Procedure section 425.16.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Cody Strock's special motion to strike:

As an initial matter, the Court will exercise its discretion to consider defendant Cody Strock's ("Strock") late-filed special motion to strike. (Code Civ. Proc., § 425.16, subd. (f); *Hoang v. Tran* (2021) 60 Cal.App.5th 513, 526; *Chitsazzadeh v. Kramer & Kaslow* (2011) 199 Cal.App.4th 676, 684 ["[s]ection 425.16, subdivision (f). . . does not require a moving defendant to request leave of court prior to filing an untimely motion. Instead, subdivision (f) authorizes the court, in its discretion, to consider an untimely motion without restriction as to whether or when the moving defendant so requests."]; *Camy Decl.*, ¶¶ 2-3, Exh. A; *Shrout Decl.*, ¶ 2, Exh. A.)

Strock's special motion to strike is **GRANTED**. (Code Civ. Proc., § 425.16.) "Section 425.16 posits...a two-step process for determining whether an action is a SLAPP." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.) "First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity." (*Ibid.*; Code Civ. Proc., § 425.16, subd. (b)(1).) "A defendant meets this burden by demonstrating that the act underlying the plaintiff's cause fits one of the categories spelled out in section 425.16, subdivision (e)." (*Navellier, supra*, 29 Cal.4th at p. 88, citation and quotation marks omitted.) "If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim." (*Ibid.*; Code Civ. Proc., § 425.16, subd. (b)(1).) "In this phase, the plaintiff must show both that the claim is legally sufficient and there is admissible evidence that, if credited, would be sufficient to sustain a favorable judgment." (*Ibid.*) "In making this assessment, the court must consider both the legal sufficiency of and evidentiary support for the pleaded claims, and must also examine whether there are any constitutional or nonconstitutional defenses to the pleaded claims and, if so, whether there is evidence to negate any such defenses." (*McGarry v. University of San Diego* (2007) 154 Cal.App.4th 97, 108.)

The Court finds that Strock has satisfied his burden of showing that the causes of action in plaintiff's complaint arise from protected activities. (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1009; *Lee v. Fick* (2005) 135 Cal.App.4th 89, 96-97; see also *City of Montebello v. Vasquez* (2016) 1 Cal.5th 409, 422-423; *Comstock v. Aber* (2012) 212 Cal.App.4th

931, 941-942; Complaint, ¶¶ 1-3, 13-27; Strock Decl., ¶¶ 2-6, Exhibit B.) As Strock has established that protected activities are alleged, “the burden shifts to the plaintiff to demonstrate there is a reasonable probability he or she will prevail on the merits at trial.” (*McGarry, supra*, 154 Cal.App.4th at p. 108.) In its moving and supporting papers, Strock asserts the official proceedings privilege as to the protected claims. (Civ. Code, § 47, subd. (b); *Laker v. Board of Trustees of California State University* (2019) 32 Cal.App.5th 745, 769-770; *Hansen v. Department of Corrections & Rehabilitation* (2008) 171 Cal.App.4th 1537, 154; *Slaughter v. Friedman* (1982) 32 Cal.3d 149, 156; see also *Kim v. Walker* (1989) 208 Cal.App.3d 375, 383; *Cayley v. Nunn* (1987) 190 Cal.App.3d 300, 303; *Comstock v. Aber* (2012) 212 Cal.App.4th 93, 952.) Plaintiff fails to establish in his opposition that the official proceedings privilege does not apply. Therefore, the Court finds that plaintiff failed to satisfy his burden and has not demonstrated a probability of prevailing on his claims. (*Navellier, supra*, 29 Cal.4th at p. 88; *McGarry, supra*, 154 Cal.App.4th at p. 108.)

Strock’s request for attorneys’ fees and costs is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 425.16, subd. (c)(1).) Strock failed to submit a separate declaration regarding the total attorneys’ fees and costs incurred in bringing this special motion to strike. (Memo. Pts. & Auths., p. 9.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Cody Strock’s demurrer:

Strock’s demurrer to plaintiff’s complaint is **OVERRULED AS MOOT**. (Code Civ. Proc., § 430.10, subd. (e).) In granting Strock’s special motion to strike, the Court is striking plaintiff’s entire complaint.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Plaintiff’s motion for attorneys’ fees:

Plaintiff’s motion for attorneys’ fees is **DENIED**. (Code Civ. Proc., § 425.16, subd. (c)(1).) As the Court is granting Strock’s special motion to strike, plaintiff is not a prevailing party entitled to attorneys’ fees and costs.

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sierra Northern Railway v. California Department of Water
Resources
Case No. CV2022-0479**

Hearing Date: **January 29, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, plaintiff Sierra Northern Railway's motion for summary adjudication of State Defendants' implied dedication affirmative defenses is **CONTINUED** to **March 12, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: **Soliven v. Morales**
 Case No. CV2025-2329

Hearing Date: **January 29, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendant Felix G. Morales' demurrer to plaintiff's first amended verified complaint and defendant's motion to strike portions of plaintiff's first amended verified complaint are **CONTINUED** to **March 3, 2026**, at 9:00 a.m. in Department Eleven.